

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO H.B. 2118
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-485.01, Arizona Revised Statutes, is amended
3 to read:

4 9-485.01. Mobile food vendors; mobile food units; operation

5 A. In relation to a mobile food vendor or mobile food unit, a city
6 or town by ordinance or resolution may:

7 1. Prohibit or restrict a mobile food vendor from operating at a
8 public airport or public transit facility, in an area zoned for
9 residential use or within two hundred fifty feet of an area zoned for
10 residential use.

11 2. Continue to enact and enforce regulations and zoning codes on
12 mobile food units or mobile food vendors that are not otherwise prohibited
13 by law.

14 B. In relation to a mobile food vendor or mobile food unit, a city
15 or town may not:

16 1. Require a mobile food vendor, property owner or lessee of a
17 property to apply for and receive any special permit that is not required
18 for other temporary or mobile vending businesses in the same zoning
19 district.

20 2. Require a mobile food vendor or mobile food unit to operate a
21 specific distance from the perimeter of an existing commercial
22 establishment or restaurant, except as required by applicable building,
23 fire, street and sidewalk codes.

1 3. Prohibit or restrict a mobile food vendor or mobile food unit
2 from using any legal parking space, including metered parking, except to
3 restrict the number of spaces, vehicle size and parking duration and the
4 ability to occupy sites with insufficient parking capacity as prescribed
5 by a local zoning ordinance of the city or town or as otherwise prohibited
6 by federal law.

7 4. Require a mobile food unit to be inspected by a city or town
8 fire department before operation if the mobile food vendor provides
9 evidence that the mobile food unit passed a fire inspection by another
10 city or town fire department in this state within the preceding twelve
11 months.

12 5. REQUIRE A MOBILE FOOD VENDOR TO OBTAIN A LOCAL REGULATORY PERMIT
13 OR LICENSE.

14 C. A city or town with a population of more than fifty thousand
15 persons shall make available all applicable license applications in an
16 electronic format that is available online and may not require a mobile
17 food vendor to apply in person.

18 Sec. 2. Section 36-1761, Arizona Revised Statutes, is amended to
19 read:

20 36-1761. Mobile food vendors; mobile food units; rules;
21 health and safety licensing standards

22 A. The director shall adopt rules that do all of the following:

23 1. Establish health and safety licensing standards for mobile food
24 vendors and mobile food units that apply on a statewide basis. The
25 licensing standards shall:

26 (a) Include three categories of mobile food units that are based on
27 the type of food dispensed and the amount of handling and preparation
28 required.

29 (b) Include general physical and operation requirements of a mobile
30 food unit, including:

31 (i) Installation of compressors, generators and similar mechanical
32 units that are not an integral part of the food preparation or storage
33 equipment.

34 (ii) Necessary commissary or other servicing area agreements.

35 (iii) Vehicle and equipment cleaning requirements.

36 (iv) Waste disposal requirements during and after operation on
37 public or private property, which may not include the size or dimensions
38 of any required solid waste receptacle.

39 2. Establish statewide inspection standards that are based on
40 objective factors for use by the county health departments.

41 3. Establish a licensing process for mobile food units that does
42 all of the following:

43 (a) Requires a separate license for each mobile food unit.

44 (b) Requires a license to be renewed annually.

45 (c) Delegates to the county health department in the county where
46 the mobile food vendor's commissary is located the licensing and health
47 and safety inspection for state licensure using the statewide inspection

1 standards adopted pursuant to this section. The licensing process shall
2 require random inspections by county health departments at no additional
3 cost except as provided in section 11-269.24. A mobile food unit license
4 issued by a county health department pursuant to this section shall have
5 reciprocity in each county of this state. A county health department may
6 enforce the statewide inspection standards regardless of where the license
7 was issued.

8 (d) Requires all employees of a mobile food vendor to have a valid
9 food handler card or a certificate from an accredited food handler
10 training class as specified in rule by the department.

11 (e) Requires that the license be displayed in the mobile food
12 vendor's operating location in a conspicuous location for public view.

13 B. The rules adopted pursuant to this section may not do either of
14 the following:

15 1. Require a mobile food vendor or mobile food unit to operate a
16 specific distance from the perimeter of an existing commercial
17 establishment or restaurant.

18 2. Address the operating hours of a mobile food unit.

19 C. Except as otherwise specified in this chapter, the director may
20 adopt rules that are substantively the same as the regulations that are in
21 place on August 3, 2018 in Maricopa county regarding mobile food
22 establishments.

23 ~~D. This section does not preclude a city, town or county from~~
24 ~~requiring a mobile food vendor to be licensed if the licensing system~~
25 ~~includes a background check or identification and fingerprinting of the~~
26 ~~owner of the mobile food vending operation.~~

27 [D. THIS SECTION DOES NOT PRECLUDE A COUNTY FROM DOING ANY OF THE
28 FOLLOWING:

29 1. REQUIRING A MOBILE FOOD VENDOR TO BE LICENSED OR PERMITTED.

30 2. COLLECTING FEES OR IMPOSING IDENTIFICATION REQUIREMENTS THAT ARE
31 NECESSARY TO ADMINISTER AND ENFORCE MOBILE FOOD VENDOR REGULATIONS AND
32 INSPECTIONS PURSUANT TO THIS TITLE OR ANY DELEGATION AGREEMENT.]

33 Enroll and engross to conform

34 Amend title to conform

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